

VP-09

Customer Correspondence

Nimbus Cooperative Bank Ltd. pilot, compliance escalation and termination

Entity	VertexPay Technologies Private Limited
Status	Participant Case File
Benchmark note	Synthetic record. Names and identifiers are fictional; statutory and regulatory sources are real.

1. Master services context

Nimbus engaged VertexPay on 15 December 2024 to provide payment-routing software, reconciliation APIs and a controlled pilot. Nimbus remained the regulated entity and settlement occurred through Nimbus accounts. Annual contracted fees were INR 72 million, with implementation milestones. The MSA permitted termination for material misrepresentation or unresolved critical security breach after ten Business Days' cure, except deliberate fraud.

2. Letter dated 22 August 2025

Subject: Notice of material compliance concerns. Nimbus states that VertexPay sales material described itself as 'RBI-approved', that 14-18 July transaction logs were incomplete, and that an unreconciled INR 8.4 million pilot settlement file remained outstanding. It requires corrected communications, full logs and an officer certificate by 5 September, failing which pilot access may be suspended.

Chronology anomaly: paragraph 3 says 'At our meeting of 25 August 2025, Mr Mehta accepted that no VertexPay authorisation exists', even though the letter is dated 22 August. Nimbus later says the date was a template error and the signed letter was actually issued 26 August. The email wrapper shows receipt by VertexPay on 26 August at 9:12 a.m.; the attached PDF filename is 'Notice_22Aug_signed.pdf'.

3. VertexPay response dated 29 August 2025

Aarav states that VertexPay never held customer funds, that 'RBI-approved' referred to partner-bank controls, and that the July logs were temporarily unavailable during a database migration. He commits to provide logs by 2 September. Compliance's tracked draft deleted a sentence stating 'our PA application is in final review'; the signed PDF does not contain that sentence.

4. Nimbus email of 3 September 2025

Nimbus confirms receipt of logs for 16-18 July but says 14-15 July events lack immutable timestamps. It also asks why a Vertex Labs LLP server appears in the architecture diagram without a subcontractor approval. Nimbus pauses new merchant onboarding but continues the pilot for existing test merchants.

5. Internal/customer call note dated 5 September

Nisha's handwritten note says Nimbus would accept a remediation plan and did not demand Aarav's removal. A typed note created by Kavya's office says Nimbus 'will terminate unless leadership changes'. Nimbus participants have not verified either note. No recording is present.

6. Suspension and termination correspondence

On 16 September, Nimbus acknowledges Nisha as interim CEO and grants cure until 30 September. On 2 October it issues a 30-day termination notice, citing governance instability, missing two days of logs and public-authorisation language. It offers transition support and states it has not concluded fraud. On 14 October, Nimbus pays INR 18.7 million against INR 31.5 million invoiced, withholding INR 12.8 million pending service credits.

7. Evidence status

Item	Available	Missing / weakness
Nimbus letters	Rendered PDFs and email wrappers	No native signed files or certificate
Sales deck	Screenshots of two slides	No version history; speaker notes missing
Transaction logs	CSV excerpt for 16-18 July	14-15 July missing; no server image
Call notes	Two competing notes	No recording or witness confirmation
MSA	Relevant clauses summarised	Full MSA withheld for bank confidentiality